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| March 9, 2018               |   |   |   |   |   |
| FEDERAL MARITIME COMMISSION |   |   |   |   |   |

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 17-02**

**HANGZHOU QIANWANG DRESS CO., LTD.**

**v.**

**RDD FREIGHT INTERNATIONAL INC.**

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**ORDER TO APPEAR FOR A TELEPHONE CONFERENCE ON  
MARCH 15, 2018, AT 10:00 A.M. EASTERN DAYLIGHT TIME**

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On March 1, 2018, the undersigned entered an order for the parties to comply fully with the discovery order entered February 1, 2018. *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02 (ALJ Mar. 1, 2018) (Order Compelling Parties to Comply Fully with Discovery Order Dated February 1, 2018). *Inter alia*, the order required that:

[T]he parties appear for a telephone conference on March 15, 2018. The parties are ordered to confer and establish a mutually convenient time for the telephone conference and, on or before March 8, 2018, notify the undersigned at [judges@fmc.gov](mailto:judges@fmc.gov) of that time. If both parties are not available on March 15, 2018, the parties are ordered to establish three alternate proposals for time and date (either March 12, 13, or 14, 2018) for a telephone conference and notify the undersigned at [judges@fmc.gov](mailto:judges@fmc.gov) of those times and dates proposed for the conference and, on or before March 8, 2018, notify the undersigned at [judges@fmc.gov](mailto:judges@fmc.gov) of that time and date.

Hangzhou Qianwang is the complainant in this proceeding. Therefore, the responsibility to initiate the conference between the parties to establish a mutually convenient date and time for the telephone conference falls on Hangzhou Qianwang. If the parties are unable to establish a mutually convenient time, on or before March 8, 2018, each party must file a status report stating why the parties were not able to establish a time. Appropriate sanctions, including entry of a decision on

default or dismissal of a party's claims, may be entered against a party that fails to cooperate or fails to appear for the conference.

*Id.* at 4.

On March 8, 2018, the Office of Administrative Law Judges received an email from Xingliang Qian, the representative for Hangzhou Qianwang Dress Co., Ltd., stating:

Let's make sure next Thur. (Mar. 15), 10:00 am, call my Chinese cell: +86 18958081955 to discuss this Docket together.

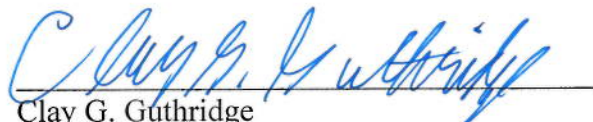
Please confirm by email for everybody.

(Email dated Thursday, March 08, 2018 12:35 PM, from echohats@aliyun.com to secretary@FMC.gov, Judges@FMC.gov, and Attorney Pan, rpanlaw@yahoo.com.) Later on March 8, 2018, the Office of Administrative Law Judges received a second email from Xingliang Qian stating:

See attached [certificate of service for Objections and Responses to Respondent's First Set of Interrogatories, Objections and Responses to Respondent's First Request for Production of Documents, and documents to which the responses refer]. Also I made the appointment for next Thur. 10:00 am to talk, pls let me know!

(Email dated Thursday, March 08, 2018 9:41 PM, from echohats@aliyun.com to secretary@FMC.gov and Judges@FMC.gov.) This email apparently was not copied to Attorney Pan. The Secretary forwarded the email and its attachment to Attorney Pan. Although the Certificate of Service does not have a caption or any information other than the name of Complainant that links it to this proceeding, it is apparent that it relates to this case and was submitted in reply to the March 1, 2018, order.

The parties were "ordered to confer and establish a mutually convenient time for the telephone conference and, on or before March 8, 2018, notify the undersigned at judges@fmc.gov of that time." It is not clear from Xingliang Qian's 12:35 PM email whether 10:00 A.M. is a "mutually convenient time." Attorney Pan has not "file[d] a status report stating why the parties were not able to establish a time," however. Therefore, the parties are ordered to appear for a telephone status conference on March 15, 2018, at 10:00 A.M. Eastern Daylight Time. The parties will receive additional instructions by email about initiating the telephone conference. The parties should review the February 1, 2018, order for the matters to be discussed in the conference call. Other matters may also be discussed.

  
Clay G. Guthridge  
Administrative Law Judge